

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2018-006090

BETWEEN:

MRS ELEANOR BLACKWOOD

Appellant

- and -

MR JAMES BLACKWOOD

Respondent

APPELLANT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Appellant beneficiary seeks an account and removal of the Respondent as trustee, contending that he has breached his fiduciary duties by self-dealing, failing to invest trust assets prudently, and favouring himself as a beneficiary.

B. RELEVANT FACTS

2. The trust was established by the parties' late father in 2010 with assets of approximately £8 million.
3. The Respondent is sole trustee and also a discretionary beneficiary.
4. The Respondent purchased a property from the trust in 2018 at an alleged undervalue of £350,000.
5. Trust investments have performed 40% below benchmark over the period 2015-2023.
6. The Respondent has made distributions to himself totalling £1.2 million while distributing only £200,000 to the Appellant.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Trustee Act 1925
 - Trustee Act 2000
 - Limitation Act 1980, s.21

D. SUBMISSIONS

8. The Respondent breached the self-dealing rule by purchasing trust property.
9. The Respondent has failed to invest with due care and diversification.
10. The distribution pattern demonstrates improper favouritism.
11. The limitation period does not apply to claims for breach of fiduciary duty.

E. AUTHORITIES

12. The following authorities are relied upon:

- Armitage v Nurse [1998] Ch 241
- Spread Trustee Co Ltd v Hutcheson [2011] UKPC 13
- Target Holdings Ltd v Redferns [1996] AC 421

F. RELIEF SOUGHT

13. The Appellant respectfully requests that this Court:

- Account of administration
- Removal of the Respondent as trustee
- Equitable compensation
- Costs

Sarah Clarke KC

Sarah Wilson

15 April 2025

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